

Chapter 8

LICENSES AND BUSINESS REGULATIONS*

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ARTICLE I. IN GENERAL

Sec. 8-1. Alcoholic beverages.

(a) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

- (1) *Alcoholic beverage* shall mean all distilled liquors, or rectified spirits, vinous, fermented, brewed, and malt liquors; any beverage, by whatever name called containing more than one (1) percent of alcohol by volume at sixty (60) degrees Fahrenheit; and any beverage any part of which is intoxicating beverage or liquor.
- (2) *Licensing board* shall mean the board established in section 8-26.
- (3) *Open container* shall mean all containers (bottles, cans, glasses, cups, etc.) which are not sealed and are suitable for use by a person to consume liquids, which in fact contain an alcoholic beverage.
- (4) *Private property open to the public* shall mean all entry ways and parking lots intended for the use of retail and commercial customers and professional's clients; and all grounds, including lawns, which are a part of retail or commercial establishments, churches, private clubs, private schools, or any other facility to which the public is invited or encouraged to attend; provided, the interior of churches, private clubs, and private schools shall not be included within this definition.
- (5) *Public property* shall mean all municipal streets, highways, sidewalks, parking lots, buildings, schools, and all other land and buildings owned by the city, excluding those premises rented or leased to others and specifically excluding all municipal parks which are controlled by chapter 12 or any subsequent ordinance regulating the use of alcoholic beverages in parks.

(b) *Prohibited acts.* Except as provided in (c) below, it shall be illegal for any person to knowingly commit any of the following acts on public property or private property open to the public:

- (1) Consume any alcoholic beverage;
- (2) Have in their possession an open container;
- (3) Be in the presence of an open container; or
- (4) Disguise any open container by inserting it in a bag, wrapping it with any nontransparent material, or otherwise preventing a clear view of the open container.

(c) *License.* The licensing board may grant to any person, group or other legal entity a license which authorizes consumption of alcoholic beverages on public property and/or private property open to the public at an organized and supervised gathering upon such reasonable conditions as the licensing board may set. Under

the provisions of such license, the acts otherwise prohibited by this section shall not be illegal.

(Ord. No. 202, 9-10-80)

Cross reference—Consumption or possession of alcoholic beverages in public parks prohibited, § 12-72.

Sec. 8-2. Sunday activities permitted.

All retail business activities, plays, games, sports, and exhibitions, not otherwise prohibited by law, may be conducted in the city on any day of the week, including Sundays, Memorial Day, and Veterans' Day.

(Ord. No. 192, § 1, 11-6-79)

Editor's note—This provision was adopted by referendum on November 6, 1979 pursuant to RSA 332-D.

Cross reference—Parks and recreation, Ch. 12.

Secs. 8-3—8-25. Reserved.

ARTICLE II. LICENSING BOARD*

Sec. 8-26. Created.

The licensing board for the city shall consist of the city manager, the chief of police, and a third member to be elected by the city council. The member of the board elected by the city council shall serve at the pleasure of the city council, and shall serve without pay. Neither the manager nor the chief of police shall be entitled to compensation for services as members of the board in addition to compensation paid to them as manager and chief of police.

(Ord. No. 2, § 1, 5-12-48)

Sec. 8-27. Duties.

It shall be the duty of the licensing board to investigate and decide the question of granting licenses under RSA 174:1 and 174:2 and to grant licenses as provided in such statute and such other licenses as the board may be authorized to issue.

(Ord. No. 2, § 2, 5-12-48)

Secs. 8-28—8-45. Reserved.

***Cross reference**—Boards, committees, commissions, § 2-26 et seq.

ARTICLE III. AMUSEMENTS

DIVISION 1. GENERALLY

Sec. 8-46. License—Required for certain activities.

No person shall conduct a public dance, roller skating rink, moving picture theatre, theatrical or dramatic representation, circus, carnival, wild west show or other tent show, a motorcycle, automobile or other automotive vehicle race, unless a license shall first be obtained from the licensing board.

(Ord. No. 2, § 3, 5-12-48; Ord. No. 13, § 1, 7-5-50; Ord. No. 20, § 1, 10-3-51)

Sec. 8-47. Same—Blanket for theatres.

The licensing board may grant a blanket license to a person operating a theatre for the public showing of moving pictures, and in such case the licensee shall pay in advance the fee which is on file in the city manager's office. A licensee who has paid a license fee for the showing of moving pictures may present occasional exhibition, vaudeville entertainment and presentations other than or in addition to moving pictures upon payment of such additional fee as to the board may deem just and reasonable.

(Ord. No. 2, § 4, 5-12-48; Ord. No. 78, § 1, 5-4-60)

Sec. 8-48. Same—Public dances; roller skating rinks.

The licensing board may grant a license to a person operating a public dance hall and/or roller skating rink upon payment by the licensee of a fee on file in the city manager's office. The licensing board may grant a license for the conduct of individual dances open to the public upon payment of a license fee on file in the city manager's office.

(Ord. No. 2, § 5, 5-12-48)

Sec. 8-49. Same—Circuses and similar activities.

(a) The licensing board may grant a license to any person operating a circus, carnival or similar show upon payment of a license fee in advance at the rates which are on file in the city manager's office.

(b) However, the license fee to be charged any organization deemed to be a bona fide charity by the Bureau of Internal Revenue, Treasury Department, United States Government, under Internal Revenue laws of the United States, shall be on file in the city manager's office whenever any such charitable organization shall offer to the public for the sole benefit of itself or for the benefit of other such charitable organizations, any show or exhibition falling within the meaning and purview of and encompassed by the words circus, carnival or similar show as used in this section.

(Ord. No. 2, § 6, 5-12-48; Ord. No. 29, § 1, 6-4-52; Ord. No. 273, § 4, 4-9-87)

Sec. 8-50. Same—Motor races.

The licensing board may grant a license to any person to conduct a motorcycle, automobile or other automotive vehicle race upon the payment of a license fee, in advance, the amount of which is on file in the city manager's office. An annual license issued hereunder shall remain in force and effect for a period of one (1) year from the date of issuance. The licensing board shall impose such restrictions and conditions as are essential for the health and safety of the public, including conditions as to adequate guardrails, seating facilities, parking facilities and control of traffic moving to and from the public highways to the premises where such races may be held. No such races shall be authorized in any residential district.

(Ord. No. 13, § 2, 7-5-50; Ord. No. 20, § 2, 10-3-51)

Sec. 8-51. Same—Applications and restrictions.

(a) Applications for licenses required in sections 8-46 through 8-50 shall be made to the city manager upon such forms as may be required by the licensing board unless otherwise provided in this chapter.

(b) The licensing board is hereby authorized to impose all reasonable restrictions upon such licenses as it may deem essential for the health, safety and morals of the public.

(c) Licenses issued under this section shall be recorded by the city clerk, who shall be entitled to a fee of which is on file in the city manager's office for each license, to be paid by the licensee to whom granted.

(Ord. No. 2, §§ 7-9, 5-12-48)

Secs. 8-52-8-65. Reserved.

DIVISION 2. DRIVE-IN THEATERS

Sec. 8-66. Definition.

For the purpose of this division, "drive-in theatre" is defined to be an open air motion picture theatre operated in an established permanent structure or building without cover or roof displaying or showing moving pictures to the general public.

(Ord. No. 10, § 2, 5-3-50)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 8-67. License required.

No person shall operate a drive-in theatre within the limits of the city without having first obtained a license therefor.

(Ord. No. 10, § 1, 5-3-50)

Sec. 8-68. Application.

Application for a license required by this division shall be made to the city manager. Every application shall give the name and address of the applicant and the person owning an interest in the proposed theatre, and if the applicant be a corporation it shall give the names and addresses of the officers and directors of the corporation. In each application there shall be set forth the location where it is proposed to operate the theatre and the number of cars the proposed theatre is designed to accommodate.

(Ord. No. 10, § 3, 5-3-50)

Sec. 8-69. Fees.

The annual fee for a license to operate a drive-in theatre shall be as on file in the city manager's office. All licenses shall expire on December 31 of each year.

(Ord. No. 10, § 4, 5-3-50; Ord. No. 273, § 4, 4-9-87)

Sec. 8-70. Approval and issuance.

Applications for licenses to operate drive-in theatres shall be investigated by the licensing board. If the licensing board finds the applicant to be a person of good moral character, and, in the case of corporate applicants, finds that its officers and directors are persons of good moral character, and finds that the applicant is capable of operating the business in a manner consistent with the public safety and good morals of the city, and finds that the proposed location is authorized under any applicable zoning ordinance, it shall thereupon grant a license to the applicant. All licenses issued hereunder shall be nontransferable.

(Ord. No. 10, § 5, 5-3-50)

Sec. 8-71. Rules and regulations.

The rules and regulations governing the conduct and operation of drive-in theatres in the city shall be as follows:

- (1) Quiet and good order shall be maintained upon the premises where any drive-in theatre is operated and loitering shall not be permitted in or about the entrance to or exit from such theatre.
- (2) No picture or other form of advertising shall be permitted which is not true to the moving picture entertainment so advertised, or which misleads or misinforms the public as to the nature of the picture to be exhibited.
- (3) It shall be unlawful for the owner, operator, manager or employee of any drive-in theatre to make a gift or offer a prize or other thing of value in connection with the operation of the drive-in theatre as a means of inducing people to attend or buy tickets for such theatre. It shall also be unlawful to advertise or represent to the public that any gift,

prize or thing of value will be given in connection with attendance or purchase of tickets for the theatre.

- (4) The owner, operator and manager or any other person in charge of a drive-in theatre shall be responsible for the enforcement and observation of the rules and regulations contained in this section and no employee of the drive-in theatre shall violate or assist in the violation of any such rules or regulations. The owner or operator of a drive-in theatre shall keep at all times, while the theatre is in operation, a male employee over twenty-one (21) years of age who shall be in responsible charge of the operation of the theatre and enforcement of these rules and regulations.
- (5) There shall be access available to public streets or public ways for two-way traffic at all times. Such means of access shall be kept clear at all times to facilitate departure of persons in vehicles and to permit entrance of fire apparatus or ambulances in case of emergencies. All driveways used by vehicles must be satisfactorily paved or treated to avoid creating dust.
- (6) Exits and aisles and passageways leading to them, shall be kept adequately lighted at all times when open to the public. Artificial light shall be provided whenever natural light is inadequate.
- (7) Except as otherwise provided by law, electrical installations shall conform to the requirements of the National Electrical Code. The electrical system shall be installed, maintained, and operated in a safe and workmanlike manner. The electrical system and equipment shall be isolated from the public by proper elevation or guarding, and all electrical fuses and switches shall be enclosed in approved enclosures. Cables on the ground in areas traversed by the public, shall be placed in trenches or protected by approved covers.
- (8) Fire extinguishing equipment shall be furnished in such amount and in such locations as may be directed by the fire chief. The electrical installations and fire extinguishing equipment shall be inspected and approved before being

opened to the public and shall thereafter be open to inspection at all reasonable hours, to duly designated officials of the city.

- (9) Adequate and proper toilet and sanitary facilities that have been approved by the board of health shall be provided.
- (10) At all times when a drive-in theatre is open to the public there shall be one (1) or more qualified attendants on duty at all times, who shall patrol the exits, entrances and parking spaces to see that order is maintained, disorderly or immoral conduct prevented, the entrances and exits kept free from congestion, and that the rules and regulations appertaining to drive-in theatres are observed.
- (11) Individual loudspeakers for each car shall be provided and no central loudspeaker shall be permitted.
- (12) Any sale of soft drinks, confections or other articles of merchandise, shall be governed by the laws and ordinances governing such business and shall require the same license as if such sales were conducted elsewhere.
- (13) All licensees hereunder shall comply with the provisions of RSA 441, concerning the presence of children under fourteen (14) years of age in places of amusement, the provisions of RSA 447, with respect to the conduct of lotteries, and the provisions of RSA 448 and section 8-2 with respect to the opening of places of amusement on Sunday.
- (14) The violation of any provision of this section by any licensee hereunder shall be cause for immediate suspension of the license of any violator, and the licensing board is hereby authorized to fix the period during which any such license shall be suspended.
- (15) The proposed location for any drive-in theatre shall be such that the roadway or roadways upon the premises, between the point of entrance at the public highway and the point where tickets are sold, shall be of sufficient length and width to accommodate at least twenty-five (25) percent of the total number of automobiles which can be accommodated in the theatre parking area, having regard to the

requirements of section 8-71(5) with respect to accessibility for emergency vehicles at all times.

- (16) The screen upon which motion pictures are projected shall be so situated upon the drive-in theatre premises that the images thrown upon the screen cannot be observed from the public highways adjacent to the theatre premises.
(Ord. No. 10, §§ 5, 6, 5-30-50; Ord. No. 12, § 1, 6-7-50)

Secs. 8-72–8-90. Reserved.

ARTICLE IV. FOOD SERVICE ESTABLISHMENTS*

Sec. 8-91. Authority.

This article is enacted under the authority of RSA 47:17(XV) to comply with the directive, contained in RSA 143:6, that local boards of health shall assist in the sanitary production and distribution of food.

(Ord. No. 275, § 1, 3-11-87)

Sec. 8-92. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Food shall mean any raw, cooked, or processed edible substance, ice, beverage, or ingredient used or intended for use or for sale in whole or in part for human consumption.

Food service establishment shall mean any fixed or mobile, attended or unattended restaurant; coffee shop cafeteria; short order cafe; luncheonette; grill; tearoom; sandwich shop; soda fountain; tavern; bar; cocktail lounge; nightclub; roadside stand; industrial feeding establishment; food vending operation; private or public organization or institution, whether profit or nonprofit, which routinely serves food; catering kitchen; commissary, or similar place in which food or drink is prepared for sale or for service on

*Cross reference—Board of health, § 2-71 et seq.

State law reference—Authority to regulate restaurants, RSA 47:17(IV).

the premises or elsewhere; and any other eating and drinking establishment or operation where food is served or provided for the public with or without charge.

Health officer shall mean a person appointed to that position by the city manager; any person authorized by the city manager to temporarily act in that capacity and any person they may designate as assistant health officers or health inspectors.

Occasional food service establishment shall mean any food service establishment operated by a private or public organization or institution, whether profit or nonprofit, which prepares food or drink for sale or for service, any other eating or drinking establishment or operation where food is served or provided for the public with or without charge, no more than four (4) days during a thirty-day period.

Retail food store shall mean any establishment or section of an establishment where food or food products intended for off-premises consumption are offered to the public. The term includes delicatessens which offer prepared food in bulk quantities only. It does not include establishments which handle only prepackaged, not potentially hazardous foods, roadside markets or farm stands which sell only fresh fruits and vegetables; food service establishments; or food and beverage vending machines.

Rules for the sanitary production and distribution of food shall mean sections 2303 through 2350 of He-P2300, published August, 1984, by the New Hampshire Division of Public Health Services, including any amendments hereafter made for those rules.

Temporary food service establishment shall mean any food service establishment which operates at a fixed location for a temporary period of time not exceeding two (2) weeks, in connection with a fair, carnival, circus, public exhibition, or similar transitory gathering.

(Ord. No. 275, § 2, 3-11-87)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 8-93. License required.

It shall be unlawful for any person, within the limits of the city, to operate a food service establishment, an occasional food service

establishment without first obtaining a food service license as herein provided. The city manager shall not refuse to issue a food service license to any person who has complied with the provisions of all applicable statutes, ordinances and rules.

(Ord. No. 275, § 3, 3-11-87)

Sec. 8-94. Procedure to obtain license.

(a) No person who holds a license on March 11, 1987 from the city shall be required to obtain a license under this article until that existing license expires.

(b) Not less than thirty (30) and not more than sixty (60) days before any new food service establishment, occasional food service establishment, retail food store or temporary food service establishment is opened to the public, or any current license expires, whether now in effect or hereafter issued, the owner of the establishment or store, or some person authorized by the owner in writing, shall submit an application, on forms provided by the city, to the city manager along with the license application fee herein provided.

(c) The city manager shall route all applications to the fire chief, building inspector, the zoning administrator and health officer for their comments and recommendations. Prior to making their recommendations, these officers shall inspect the premises where the establishment or store will conduct business, for compliance with the ordinances and regulations which they enforce; provided, if there has been such inspection within sixty (60) days prior to the submission of the application, the inspection may be limited to those items which were not in compliance at the time of that prior inspection.

(d) Upon receipt of recommendations from such officers, the city manager shall approve or disapprove the application; provided, if no action has been taken on the application within thirty (30) days of the date of filing the application, it shall be deemed approved. If the application is disapproved, the applicant shall be promptly notified in writing of the reasons for the disapproval.

(e) Any person aggrieved by the decision of the city manager may take an appeal to the city council within twenty (20) days of the date of the decision, and not thereafter. The appeal shall be in

writing and state the reasons why the appellant believes the decision to be in error. Upon receipt of an appeal, the council shall set a date for hearing the appeal and cause all interested parties to be notified. At the hearing, the council shall hear all interested parties. The council's decision on the appeal shall be final.

(Ord. No. 275, § 4, 3-11-87)

Sec. 8-95. License fees.

Each applicant for a license under this article shall pay a fee as set by the city manager with the approval of the city council.

(Ord. No. 275, § 5, 3-11-87)

Sec. 8-96. Rules for the sanitary production and distribution of food.

The city hereby adopts, as its standard for the production and distribution of food, the rules for the sanitary production and distribution of food. All persons licensed under this article shall comply with these standards. The health officer shall make periodic inspections of all food service establishments, occasional food services establishments, retail food stores and temporary food service establishments to assure compliance with these standards.

(Ord. No. 275, § 6, 3-11-87)

Sec. 8-97. Suspension and revocation.

The health officer, with the consent of the board of health, may suspend or revoke any license issued under this article for any violation of this article as follows:

- (1) A license may be immediately suspended for any violation of this article which the health officer determines is causing an immediate danger to the public health or safety. The notice of suspension shall be in writing; shall state the specific reasons for the suspension; shall state the remedial action required before the suspension will be terminated; and shall inform the owner or operator of their right to appeal the suspension.

- (2) A license may be revoked for repeated violations of this article, after at least one (1) suspension. The notice of revocation shall be in writing shall state the specific reasons for the revocation; and shall inform the owner or operator of their right to appeal the revocation.
 - (3) The owner or operator may appeal the suspension or revocation to the city council under the procedures contained in section 8-94(e).
- (Ord. No. 275, § 7, 3-11-87)

Secs. 8-98—8-115. Reserved.

ARTICLE V. HAWKERS AND PEDDLERS AND ITINERANT VENDORS*

DIVISION 1. GENERALLY

Sec. 8-116. Definitions.

[The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

Charitable or nonprofit solicitation means to request directly or indirectly money, credit, property, financial assistance, or other thing of value on the plea or representation that such money, credit, property, financial assistance, or other thing or any portion thereof shall be used for a charitable purpose or benefit a charitable trust. A solicitation shall be deemed to have taken place whether or not the solicitation is by person or by telephone and whether or not the person making the solicitation receives any contribution.

***Editor's note**—Ord. No. 534, § 1, adopted March 12, 2014, amended Art. V in its entirety to read as herein set out. Former Art. V, §§ 8-116—8-127, pertained to peddlers, solicitors and transient merchants, and derived from Ord. No. 285, §§ 1—8, 1-13-1988; and Ord. No. 367, 11-10-1994. See also the Code Comparative Table.

State law references—Peddlers, RSA 31:102-a; authority to regulate, RSA 47:17(XV); hawkers and peddlers, RSA 320:1 et seq.

Charitable organization means a religious, educational, charitable, civic, veterans' or fraternal organization or political committee or political party which is registered with the charitable trust division of the attorney general's office.

Hawker and peddler means any person (as defined by RSA 358-A:1), either principal or agent, who:

- (1) Travels either by foot or conveyance from town to town or from place to place in the same town selling or bartering or carrying for sale or barter or exposing therefore any goods, wares, merchandise; or
- (2) Travels either by foot or conveyance from town to town or from place to place in the same town offering to perform personal services for household repairs or improvements, or solicits or induces any person to sign any contracts relating to household repairs and improvements to any residence, structure or property; or
- (3) Keeps a regular place of business open during regular business hours at the same location, but who offers for sale or sells and delivers, personally or through agents, at a place other than his regular place of business, goods, wares or merchandise.

Itinerant vendor means any person (as defined by RSA 358-A:1), either principal or agent, including any person whose principal place of business is not in this state, who engages in a temporary or transient business in this state, either in one (1) locality or traveling from place to place, selling goods, wares and merchandise, with a total value greater than five hundred dollars (\$500.00) from stock or by sample for future delivery, and who, for the purpose of carrying on such business, hires or occupies a temporary place of business. The term "temporary place of business" means any public or quasi-public place, including but not limited to a hotel, motel, rooming house, storeroom, building, part of a building, tent, vacant lot, railroad car, or trailer temporarily occupied for the purpose of making retail sales of goods to the public.

(Ord. No. 534, § 1, 3-12-2014)

Sec. 8-117. License required.

No person shall act as a hawker or peddler or as an itinerant vendor within the city unless a valid permit has been obtained from the city clerk. A permit for a hawker or peddler may not be issued by the city clerk until a license has first been obtained from the New Hampshire Secretary of State's office, as required by RSA 320:8 and RSA 321:4, respectively. A food truck permit under section 8-133 shall satisfy the permit requirement of this section for a food truck vendor.

(Ord. No. 534, § 1, 3-12-2014; Ord. No. 567, § 1, 6-12-2019)

Sec. 8-118. Permit requirements.

No person shall receive a permit to act as a hawker or peddler or as an itinerant vendor within the city unless the following procedures have been completed:

- (1) Submission of a current, valid license from the New Hampshire Secretary of State;
- (2) Submission of an application on forms provided by the city clerk that shall contain the following information:
 - a. Name, address, age and social security number of the applicant and any employees or agents;
 - b. Name, address and tax identification number of any business entity, person or organization the applicant is or will be representing;
 - c. Items or services which the applicant intends to sell or the specific type of solicitation which is intended;
 - d. Method of sale or solicitation, including the dates and times of day;
 - e. Whether the item or service will be delivered at the time of the sale or at some time in the future. For items or services to be delivered in the future, whether a deposit or payment is required prior to delivery and the maximum time which will elapse from the date of sale to the date of delivery;

- f. Make, year of manufacture, color, vehicle identification number and vehicle registration (license) number for all motor vehicles which the applicant will use or bring into the city;
 - g. Name, address, age, driver's license number, and state which issued the driver's license for each person who will drive any of the vehicles listed in subsection (2)f. above;
 - h. Description of any cart, trailer, booth, wagon or other non-motorized device to be used by permittee;
 - i. If the applicant is engaged in interstate commerce, the ICC number of the applicant or the business entity, person or organization the applicant is or will be representing;
 - j. A statement that the applicant has not, in the preceding five (5) years, been convicted of any violations of this article or any consumer protection statute;
 - k. Certification that the applicant is not less than eighteen (18) years of age;
 - l. A statement, signed by the applicant under penalty of perjury, that all information contained in the application is true and correct to the best of the applicant's knowledge and belief;
 - m. Copy of current, valid food license, as may be applicable;
 - n. Such information as may be additionally required as determined to be in the interests of the public health, welfare and safety;
- (3) The applicant shall submit with the application such documentation as the city clerk may reasonably require to substantiate the information contained in the application.
 - (4) The applicant shall submit with the application a certificate of insurance from an insurance company licensed by the State of New Hampshire, naming the city

as an additional assured, stating that the applicant has in-force commercial general liability coverage in an amount of at least one million dollars (\$1,000,000.00) for personal injury and five hundred thousand dollars (\$500,000.00) for property damage for all claims arising out of applicant's operations in the city. Such coverage shall also include an endorsement that the city shall receive written notice upon any reduction in coverage or upon termination or cancellation of applicant's coverage. (Ord. No. 534, § 1, 3-12-2014)

Sec. 8-119. Fees, term and compliance.

(a) The fee for a hawkers and peddlers permit or an itinerant vendor permit shall be as set forth in the city's fee schedule, as approved by the city council and on file in the city manager's office.

(b) All permits issued hereunder shall expire on April 1 next following the date of issuance. No refund of any portion of the licensee fee shall be made if a permit is cancelled by either the permittee or the city prior to its expiration.

(c) All permits issued hereunder shall be displayed in a place clearly visible to the public whenever business is conducted pursuant to the permit.

(d) No permit is assignable to any other person or entity.

(e) Hawkers and peddlers and itinerant vendor permittees shall comply with applicable state law and regulation as a condition of any permit issued by the City of Claremont. (Ord. No. 534, § 1, 3-12-2014)

Sec. 8-120. Exemptions.

This article V shall not apply to:

- (1) Any person selling the product of his own labor or the labor of the person's family or the produce of the person's own farm or the one that he tills;
- (2) Any person conducting sales of personal household goods on his own property;

- (3) Any nonprofit organization, community chest, fund or foundation organized and operated exclusively for religious, charitable, scientific, literary or educational purposes when no part of the entity's earnings benefits any private shareholder or individual;
 - (4) Any person conducting business in any industry or association trade show;
 - (5) Any person who sells exclusively antiques, used goods or vintage items.
 - (6) Street fairs, farmers' markets and other community events subject to separate permitting under chapter 8 or chapter 12 of this Code.
- (Ord. No. 534, § 1, 3-12-2014)

Sec. 8-121. Locations where permitted.

(a) Hawkers and peddlers as defined in section 8-116 and itinerant vendors are permitted on sites where such non-residential use are permitted by chapter 22 of this Code or where such property is a lawful non-conforming use or has received a variance or special exception for such non-residential use. Any such site shall have sufficient on-site parking that has not been previously allocated by zoning or site plan designation and that has an adequate and safe means of entrance and exit.

(b) Permit for hawkers and peddlers as defined in section 8-116 and itinerant vendors requesting to be located in any portion of the public right-of-way, including public parking lots and on-street spaces, shall not be approved unless permission is first obtained in the form of a revocable license approved by the city council, at a reasonable fee for use of city property.

(Ord. No. 534, § 1, 3-12-2014)

Sec. 8-122. Prohibited acts.

It shall be unlawful for any person to supply any false information on an application for a license under this article. It shall also be unlawful for any person who has received a permit under this article V to:

- (1) Commence business activities for the purpose of selling or soliciting prior to 9:00 a.m. or continue after 9:00

p.m., except upon an express authorization, said permission to be granted with reasonable conditions and terms deemed necessary for the public convenience and safety;

- (2) Enter upon any premises where there is a sign, which the permittee saw or reasonably should have seen, and which reasonably conveys the message that salesmen and solicitors are not permitted on the premises, or who having gained entrance to any residence, whether invited or not, does not immediately and peaceably depart from the premises when requested to do so by the occupant;
- (3) Misrepresent the purpose for wanting to speak with any potential customer or use any form of trickery to gain admission to a building to speak with any potential customer;
- (4) Misrepresent the quantity, character, quality or manufacturer of any item or service offered for sale, or to misrepresent the manufacturer's suggested retail price or the price for which the item or service is being offered for sale in the city by others;
- (5) Operate pursuant to a permit on public property without permission as designated in the permit or on any traveled portion of a public way or in such manner as to impede normal and reasonable movement of pedestrian traffic on any sidewalk located within the city without first obtaining consent of the city council to do so;
- (6) Demand or accept any deposit or payment prior to the actual delivery of any item or service unless a receipt is given to the customer, and a duplicate copy of the receipt is retained by the permittee, which describes the item or services sold, the full price to be charged, the amount of the deposit or payment, the balance due upon delivery and states that delivery will be not later than a date stated.

(Ord. No. 534, § 1, 3-12-2014)

Sec. 8-123. Denial, suspension and revocation.

(a) A permit application for hawkers and peddlers and itinerant vendors will be denied upon a finding that any of the persons engaged in business pursuant to this article has been

convicted of an offense involving activity which if repeated would pose a threat to the public safety of the citizens of the city or which involves dishonest, fraudulent or deceptive practices leading to the misappropriation or theft of property. If a permit is denied for any reason, the applicant may appeal the denial to the city council.

(b) A permit issued pursuant to this article may be suspended, with reasonable notice, based upon a determination by the police chief that public safety is compromised during a specified time.

(c) A permit issued pursuant to this article may be revoked if it is determined that any information provided by the applicant to obtain a permit is not accurate, if the permittee fails to comply with the terms and conditions of the permit or with any provision of this article V, or if the police chief determines that it is in the interests of public safety to revoke the permit. If the permit is revoked for any reason, the permittee may appeal the revocation to the city council.

(Ord. No. 534, § 1, 3-12-2014; Ord. No. 567, § 2, 6-12-2019)

Sec. 8-124. Penalties.

Any sale or contract made in violation of this article shall be null and void upon written notice from the customer to the permittee mailed to the address shown on the permittee's application under this article. Upon such written notification, all money paid by the customer to the permittee shall be refunded and all items delivered to the customer, which the customer lists in the written notification, if any, shall be picked up by the permittee within ten (10) days from the date of mailing such notification, or be forfeited to the customer. In addition to these remedies, any person charged and convicted of a violation of this article may be fined not more than the fine for violation as set by statute.

(Ord. No. 534, § 1, 3-12-2014)

Sec. 8-125. Charitable and non-profit solicitation.

(a) No person or charitable organization shall engage in charitable or nonprofit solicitation as defined in section 8-116 without first filing a registration request with the office of the city clerk containing such information as the city clerk or the police department shall require.

(b) No charitable or nonprofit solicitation shall be conducted until such time as the city clerk has issued a certificate of registration to the person or organization requesting registration. Such registration certificate shall be issued only to those persons recognized by the charitable trust division of the state attorney general's office.

(c) A registration certificate for charitable or nonprofit solicitation may be withheld by the city clerk upon finding that any of the statements contained in the registration request filed with the city is untrue or upon a finding that any of the persons engaged or supposed to be engaged in the solicitation activities has been convicted of an offense involving activity which if repeated would pose a threat to the public safety of the citizens of the city or which involved dishonest, fraudulent, or deceptive practices leading to the misappropriation or theft of property.

The registration certificate issued pursuant to this article shall authorize the charitable or nonprofit solicitation of contributions, money or other valuable things at the times and at the locations so designated.

A charitable or nonprofit solicitation registration certificate shall be limited to a period of no longer than one (1) year, and upon the expiration of the term as stated in the certificate, a new registration statement will be required.

(d) There shall be no fee for the registration of a charitable or nonprofit solicitation.
(Ord. No. 534, § 1, 3-12-2014)

Secs. 8-126—8-130. Reserved.

DIVISION 2. SPECIAL PROVISIONS FOR
FOOD/BEVERAGE VENDING FROM A MOBILE FOOD
UNIT*

Sec. 8-131. Definitions.

As used in this division, the following terms and phrases shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Mobile food unit is a food service establishment mounted on wheels or otherwise designed to be immediately moveable.

Mobile food vendor is a hawker or peddler (as defined in article V of this chapter) selling or offering for sale food and/or beverages from a mobile food unit.

Ice cream truck is a motor vehicle used as the point of retail sales of commercially prepared, pre-wrapped, or prepackaged or hand scooped or soft-serve ice cream, frozen yogurt, frozen custard, flavored frozen water, or similar frozen products. Non-frozen items such as commercially prepared pre-packaged soft drinks, candy, chewing gum, and snack food may be sold from an ice cream truck provided the principal product sold is ice cream and/or similar frozen dessert products. An ice cream truck is a type of food truck.

(Ord. No. 567, § 3, 6-12-2019; Ord. No. 608, § 1, 7-12-2023)

Sec. 8-132. Statement of purpose and interpretation.

The purpose of this division is to regulate sales by mobile food vendors within the city. This is necessary to ensure the free flow

***Editor's note**—Ord. No. 608, § 1, adopted July 12, 2023, amended Div. 2 in its entirety to read as herein set out. Former Div. 2, §§ 8-131—2-135, pertained to special provisions for food/beverage vendors from motor vehicle. The historical notation has been retained with the amended provisions for reference purposes. Previously, Ord. No. 567, § 3, adopted June 12, 2019, set out provisions intended for use as §§ 8-126—8-130. To preserve the numbering style of this Code, and at the editor's discretion, these provisions have been included as Div. 2, §§ 8-131—8-135. Formerly, Ord. No. 567, § 3, adopted June 12, 2019, set out provisions intended for use as §§ 8-126—8-130. To preserve the numbering style of this Code, and at the editor's discretion, these provisions have been included as Div. 2, §§ 8-131—8-135.

of motor vehicle and pedestrian traffic and to promote the public health, safety, and welfare while providing the opportunity for mobile food vendors to operate within the city. Mobile food units are subject to all provisions of this article except where division 2 conflicts with any other provisions of article V, those in division 2 shall control.

(Ord. No. 567, § 3, 6-12-2019; Ord. No. 608, § 1, 7-12-2023)

Sec. 8-133. Permit required; fees.

No person shall act as a mobile food vendor within the city unless he or she has obtained a valid permit from the planning and development department. A mobile food unit permit shall take the place of the permit required for hawkers, peddlers, and itinerant vendors under section 8-117 and shall require the same license from the New Hampshire Secretary of State's Office under RSA 320:8 or RSA 321:4, and shall be subject to both the permit requirements under section 8-118 and the following additional requirements:

- (1) Applicants may apply for daily, weekly, or quarterly permits, or special event permits. Vendors to whom permits are issued have discretion about how much of the day, week or quarter they occupy their permitted space. When more applications are received for spaces than are available during any particular quarter, week, or day, the planning and development department shall determine the allocation by lottery; provided, however, that vendors who apply for a quarterly permit shall be given preference for designated spaces, and remaining spaces will be allocated to other applicants. When more applications are received for spaces than are available during any special event, the planning and development department shall determine the allocation by lottery.
- (2) An applicant's original application shall remain valid for one (1) year from the date it is submitted if the information provided in the application has stayed the same. If the applicant wishes to obtain subsequent daily, weekly, quarterly, or special event permits within that year, he or she may submit a signed statement to the planning and development department that nothing has

changed since the original application instead of submitting a new application. However, if the subsequent permit sought requires a background check or insurance certificate that was not required as part of the original application, that step will be required as part of the subsequent application.

- (3) *Daily permits.* Applicants must apply for daily permits at least three (3) business days before the requested date and shall specify the day(s) for which the permit is sought.
- (4) *Weekly permits.* Applicants must apply for weekly permits at least ten (10) business days before the requested date and shall specify the week(s) for which the permit is sought. A week as used herein, is defined as Sunday through Monday.
- (5) *Quarterly permits.* Applicants must apply for quarterly permits at least ten (10) business days prior to the beginning of the quarter. A quarter as used herein, means January—March, April—June, July—September, and October—December.
- (6) *Special event permits.* Applicants must apply for special event permits at least ten (10) business days before the event.
- (7) In addition to specific black-out times established in this article, black-out dates for one (1) or more locations may be established by the city's director of parks and recreation as he or she deems advisable to avoid interference with local special events.
- (8) Permitting fees for special events, daily, weekly, and quarterly permits shall be as provided in the city's fee schedule, which may be amended from time to time. An increased permit fee shall be charged for any permit that includes permission to plug the mobile food unit or any accessories into a city power source, as provided in the fee schedule. The fee schedule shall also include additional fees for access to restroom facilities as applicable.

(Ord. No. 567, § 3, 6-12-2019; Ord. No. 608, § 1, 7-12-2023)

Sec. 8-134. Location.

Mobile food unit vending activity is limited to the areas described below.

- (1) The following fixed parking spaces on city-owned property and/or public streets, each of which shall be eighteen (18) feet by eight (8) feet in area:
 - a. Three (3) spaces in the lower parking lot of the visitors' center;
 - b. One (1) space at the Claremont Municipal Airport;
 - c. One (1) space adjacent to the westerly side of Broad Street Park (adjacent to the city's Broad Street Parking Lot);
 - d. One (1) space at the Arrowhead Parking Lot.
- (2) Areas on city-owned property and/or public streets, eighteen (18) feet by eight (8) feet in area, designated by the city for the operation of mobile food units in connection with a special event.
- (3) Where permitted by the city's zoning ordinance, sites on commercial/industrial property with permission from the property owner(s) (for example, parking lots at big box stores).
- (4) Mobile food unit vending is prohibited in the historic district (except in city-designated fixed or designated spaces) or in any residential zone (except for ice cream trucks). This subsection does not apply to special events.

The planning and development department is authorized to permit mobile food unit vending in other locations consistent with the purposes of this division.

(Ord. No. 567, § 3, 6-12-2019; Ord. No. 608, § 1, 7-12-2023)

Sec. 8-135. Additional regulations applicable to mobile food unit.

In addition to the requirements of section 8-118, all mobile food vendors shall meet the following requirements:

- (1) Successful completion of a state criminal background check for owner/operators operating in residential areas

and/or school zones. Pursuant to RSA 31:102-b, these applicants (except for a special events permit) shall submit with their application a notarized criminal history records release form, as provided by the division of state police, which authorizes the release of the person's criminal records, if any. The cost of the records check shall be included with the permit application fee as provided in the city's fee schedule. Upon completion of the records check, the division of state police shall release copies of the criminal history records to the city's police department, which shall maintain the confidentiality of all criminal history records information received pursuant to this section. A permit shall be denied upon recommendation by the city's police chief if the background check indicates offenses related to RSA chapter(s) 318, 630, 632, 361-A, 639, 645, 649-A, 649-B, 650, 650-A, as the same may be amended from time to time, or other offenses of similar concern.

- (2) In addition to the insurance required under section 8-118(4), mobile food unit vendors must also submit with their application a certificate of insurance from an insurance company licensed by the State of New Hampshire, naming the city as an additional insured (if the permit is for operation on city-owned property or public streets), stating that the applicant has in-force commercial automobile insurance for owned, hired and non-owned vehicles in an amount of one million dollars (\$1,000,000.00) for bodily injury and property damage combined single limit per occurrence for all claims arising out of the applicant's operations in the city. Such coverage shall also include an endorsement that the city shall receive written notice upon any reduction in coverage or upon termination or cancellation of the applicant's coverage.
- (3) All mobile food vendors shall comply with RSA 265:71, parking with the right-hand wheels of the vehicle parallel and adjacent to the right-hand side of the curb (i.e., with the direction of traffic); provided, however, that

during special events, any mobile food unit parked in an area specifically designated and approved by the parks and recreation department may park against traffic.

- (4) Where the vendor connects with an external power source, all electrical cords shall be taped to the ground, covered, or otherwise secured so they do not create a tripping or other hazard.
- (5) If required under the New Hampshire State Fire Code, as the same may be amended from time to time, the vendor shall install and maintain a fire suppression system in the mobile food unit for use in cooking therein. The system shall be properly installed, maintained, and inspected as required by the State Fire Code and as administered by the city's fire department.
- (6) Hours of operation. For fixed or designated sites on city-owned property or public streets, mobile food units may operate between 7:00 a.m. and 10:00 p.m., Sunday through Thursday and between 7:00 a.m. and 12 a.m. Friday and Saturday; or unless permitted otherwise by the city health officer mobile food units operating on private property may operate at times agreed to with the property owner(s).
- (7) Unless otherwise approved during the permitting process, mobile food units other than ice cream trucks shall not play any amplified music.
- (8) Aside from signage on the vehicle itself, each mobile food unit on city-owned property or public streets may have one (1) additional sign, such as a sandwich board. The additional sign must be in accordance with the zoning ordinance for signage and may not be placed anywhere that would create a hazard or obstruction to the traveling public.
- (9) Lights are permitted on the vehicle so long as they do not create a distraction or hazard to traffic.
- (10) A mobile food vendor may offer seating adjacent to the vehicle; provided, however, that in a fixed or designated space, such seating must be located entirely within that

space or within an additional space for which the vendor has obtained a permit, and on private property, such seating must be placed in a manner agreed to with the property owner(s).

- (11) A mobile food unit shall not be left unattended on any city-owned property or public street, except if it is parked, secured, and not open for business. Mobile food units with a permit to occupy a fixed or designated space must be moved no later than forty-five (45) minutes after closing for business for the day. No mobile food unit will be permitted to occupy a space overnight except in conformance with generally applicable parking regulations.
- (12) All trash or refuse generated by or resulting from the operation of or sales from the mobile food unit shall be picked up, removed, and disposed of off-site by the vendor in an approved location ("carry in/carry out"). The vendor shall provide a rubbish bin or other container for use by customers.
- (13) Ice cream truck vending shall occur only as follows:
 - a. Ice cream truck vending may occur on public streets with a speed limit of thirty (30) miles per hour or less or on private ways with the consent of the owner(s) of the private way. No ice cream trucks shall make any sales within twenty (20) feet of any intersection or in any area where parking is prohibited or which is posted as a no parking zone.
 - b. An ice cream truck must be completely stopped and parked before selling any products.
 - c. The vendor shall sell the product only from the side of the truck facing away from moving traffic and as near as possible to the curb or edge of the street.
 - d. No ice cream truck may be stopped in any location for more than fifteen (15) minutes.

(Ord. No. 567, § 3, 6-12-2019; Ord. No. 608, § 1, 7-12-2023)

Secs. 8-136—8-140. Reserved.

ARTICLE VI. JUNKYARDS***Sec. 8-141. Definitions.**

The following words, terms and phrases, when used in the Claremont Code, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Automobile recycling yard means a motor vehicle junkyard, as defined herein, the primary purpose of which is to salvage multiple motor vehicle parts and materials for recycling or reuse;

Junk means any worn out, cast off or article, material, debris or waste of any kind, whether intact, dismantled or any part thereof, which is ready for destruction or has been collected or stored for salvage or conversion to some use.

Junkyard means a place used for storing and keeping, or storing and selling, trading, or otherwise transferring junk, as

***Editor's note**—Ord. No. 500, § 1, adopted July 9, 2008, repealed the former Art. VI, §§ 8-141—8-146, and enacted a new Art. VI, §§ 8-141—8-150, as set out herein. The former Art. VI pertained to similar subject matter. See also the Code Comparative Table.

Cross references—Buildings and building regulations, Ch. 5; plumbing code adopted, § 5-141 et seq.

defined herein or under RSA 236:112. As used herein, junkyard includes but is not limited to: automobile recycling yards, machinery junkyards, and motor vehicle junkyards, as defined in this article, and garbage dumps, waste facilities and sanitary fills. Junkyard does not include:

- (1) Solid waste management facilities as listed in RSA 236:111-a, II and approved pursuant to RSA 149-M;
- (2) The principal place of business of any motor vehicle dealer registered with the director of motor vehicles under RSA 261:104 and controlled under RSA 236:126;
- (3) Noncommercial antique motor vehicle restoration activities on vehicles over 25 years old where the owner or lessee demonstrates the requirements as listed in RSA 236:111-a, III.

Machinery junkyard means any yard or field used as a place of storage in which there is displayed to the public view, junk machinery or scrap metal that occupies an area of five hundred (500) square feet.

Motor vehicle means "motor vehicle," as defined by RSA 259:60, I, any self-propelled vehicle not operated exclusively upon stationary tracks, including ski area vehicles.

Motor vehicle junkyard means any place, not including the principal place of business of any motor vehicle dealer registered with the director of motor vehicles under RSA 261:104 and controlled under RSA 236:126, whether in connection with another business or not, where the following are stored or deposited in quantity equal in bulk to two (2) or more motor vehicles:

- (1) Motor vehicles which are no longer intended or in condition for legal use according to their original purpose;
- (2) Motor vehicles, regardless of whether intended or in condition for legal use, purchased for the purpose of dismantling the vehicles for parts or cutting up the parts thereof or for use of the metal for scrap;

- (3) Used parts of motor vehicles or old iron, metal, glass, paper, cordage or other waste or discarded or secondhand material which has been a part, or intended to be a part, of any motor vehicle;
(Ord. No. 500, § 1, 7-9-08)

Sec. 8-142. Purpose.

The purpose of this article is to conserve and safeguard the public safety, health and welfare of the city and to promote a clean, wholesome, attractive environment as significant to the economic, recreational and residential development of the community. It is recognized that the maintenance of junkyards, as defined in this article, is a useful and necessary business in the community, to be operated in a manner not in conflict with the city's public safety, health and welfare.
(Ord. No. 500, § 1, 7-9-08)

Sec. 8-143. Permit required.

No person shall operate, establish or maintain a junkyard as defined herein without having first obtained a license and certificate of approved location and having paid the required permit fee.
(Ord. No. 500, § 1, 7-9-08)

Sec. 8-144. Application for license and certificate of approved location.

(a) Application for a license and certificate of approved location shall be made in writing on a form established by the city manager and shall include, in addition to information that may be required in the city manager's discretion:

- (1) A description of the land to be included within the junkyard, by reference to so-called permanent boundary markers;
- (2) Proof of legal ownership or right to use the property for the license period;

- (3) Certification of compliance with best management practices established by the New Hampshire Department of Environmental Services for applications to establish automotive recycling yards and motor vehicle junkyards;

(b) The application must be accompanied by a certificate from the zoning board of adjustment that the proposed location is not within an established district restricted against such uses or otherwise contrary to any provision of the zoning ordinance, including a notice of decision regarding any special exception or variance that may be required.

(Ord. No. 500, § 1, 7-9-08)

Sec. 8-145. Public hearing; grant of license.

(a) The city council shall hold a hearing on the application to hear the applicant and all other persons wishing to be heard on the application. Notice of the hearing shall be given to the applicant by mail to the address given in the application and shall be published once in a newspaper having a general circulation within the city, not less than seven (7) days in advance of the hearing.

(b) In reviewing the application, the council shall consider at least the following:

- (1) The suitability of the applicant with reference to the applicant's ability to comply with fencing requirements or such other reasonable regulation concerning the application;
- (2) Convictions for any type of larceny or receiving stolen goods;
- (3) The nature and development of surrounding property, such as the proximity of churches, schools, hospitals, public buildings or other places of public gatherings.
- (4) Whether the location will affect the public health, safety or morals by reason of offensive or unhealthy odors or smoke or other causes;
- (5) Type of road servicing the junkyard;
- (6) Aesthetic considerations as set forth in RSA 236:120.

(c) In no event shall a license be granted for a new junkyard located less than one thousand (1,000) feet from the right-of-way lines of an interstate highway of less than six hundred sixty (660) feet from the right-of-way lines of class I, class II, class III or class III-a highway, or less than three hundred (300) feet from the right-of-way lines of class IV, class V and class VI highways.

(d) In no event shall a license be granted for a new junkyard located within any wellhead protection area.
(Ord. No. 500, § 1, 7-9-08)

Sec. 8-146. Performance standards.

In addition to any standards or conditions which may be required by the city council in issuing a license under this article, the applicant shall comply with the following:

- (1) *Fencing.* Prior to commencement of operations upon receipt of a license under this article, the junkyard shall be completely surrounded with a solid fence at least six (6) feet in height with a suitable gate which shall be closed and locked at all times except during business hours of the junkyard or when the applicant or applicant's agent or employee is on the premises. All junk and motor vehicles, parts and related equipment shall be stored or deposited by the applicant within the fenced area, except for transportation related to delivery or removal in the normal course of business. All work shall be performed within the fenced area.
- (2) Applicant must provide the following prior to being heard by the City Council:
 - a. *Best management practices.* A document setting forth a best management practices plan following generally the outline as set forth in the New Hampshire Department of Environmental Services Manual for Motor Vehicle Recycling Yards;
 - b. *Stormwater management.* A stormwater management plan;

- c. *Traffic.* A document indicating the flow of traffic both to and from and internal to the junkyard, as well as evidence related to the anticipated impact of such traffic on the public ways.

(Ord. No. 500, § 1, 7-9-08)

Sec. 8-147. Grant of license; renewal.

(a) The council shall, no more than two (2) weeks after the hearing, make a finding, including any conditions, as to whether or not the application should be granted by giving notice to the applicant by mail to the address given on the application.

(b) If approved, the license and the certificate of approved location shall be in effect until the following April 1. Approval is personal to the applicant and is not assignable.

(c) Licenses may be renewed thereafter upon payment of the annual license fee without hearing so long as the licensee remains in compliance with this article and the provisions of the license, has not become a public nuisance under common law or is not a nuisance under this Code or RSA 236:119, and the licensee has not been convicted of any type of larceny or of receiving stolen goods.

(d) Renewals of licenses to operate an automotive recycling yard or motor vehicle junkyard shall include a certification of compliance with the best management practices established by the department of environmental services for the automobile salvage industry.

(Ord. No. 500, § 1, 7-9-08)

Sec. 8-148. License fee.

Upon application for approval of a license under this article, and on or before April 1 for license renewals, the applicant shall pay to the city an annual license fee, on file in the city manager's office, in an amount not more than as set forth in RSA 235:122. If the application is denied, the permit fee shall be refunded to the applicant.

(Ord. No. 500, § 1, 7-9-08)

Sec. 8-149. Compliance.

The provisions of this article shall apply to junkyards licensed or permitted prior to July 7, 2008 upon their first subsequent renewal on or before April 1, 2009. Notwithstanding the above, such junkyards, as well as all properties that are not licensed or permitted as of the enactment of this article that meet the definition of junkyard under this article, are subject to compliance with all local, state and federal laws and regulations, including but not limited to those pertaining to fire, building, property maintenance and nuisance.

(Ord. No. 500, § 1, 7-9-08)

Sec. 8-150. Penalty; enforcement.

Any person who is in violation of any provision of this article shall be guilty of a violation and each day or fraction thereof shall constitute a separate offense.

Enforcement of this article shall be pursuant to RSA 236:128.
(Ord. No. 500, § 1, 7-9-08)

**ARTICLE VII. LICENSES FOR PRIVATE SOLID WASTE
COLLECTION SERVICES****Sec. 8-151. Purpose.**

This article is enacted as part of the city's responsibility for continued and ongoing planning for solid waste management within its boundaries pursuant to RSA 149-M and as one (1) part of the implementation of the City of Claremont Solid Waste Policy Statement, adopted by the Claremont City Council on February 20, 2007.

(Ord. No. 483, § 1, 5-9-07)

Sec. 8-152. Licenses required.

(a) Effective July 1, 2007, any individual, firm, partnership, joint venture, corporation, association or other non-public legal entity performing solid waste collection and disposal services for a fee within the city must obtain an annual license to operate from the department of public works on or before January 1 of

each year. The fee for the annual license shall be set forth in the city's fee schedule, as adopted by the city council. The fee for a partial year's license shall be prorated for the number of months for which a license is granted in any calendar year.

(b) The director of public works shall issue a license in writing to each entity providing such service, which shall be posted in public view at the licensee's place of business, with a copy maintained in each vehicle operated subject to the license.

(c) All licenses shall be subject to those requirements, rules, regulations and procedures that may be adopted from time to time by the city council.

(d) All licenses shall include a statement by the licensee disclosing licensee's intended disposal sites for both recycled materials and other solid waste collected by licensee from locations within the city. Said statement shall be updated at least annually or when such disposal sites may change, whichever occurs sooner.

(Ord. No. 483, § 1, 5-9-07)

Sec. 8-153. Conditions for license approval.

Licensees are subject to the following requirements as conditions of license approval:

- (1) Proof of appropriate driver's licenses for all drivers;
- (2) Agreement to offer no later than January 1, 2008, curbside recycling collection, including but not limited to glass food and beverage containers, steel and aluminum cans, aluminum foil, HDPE #2 (high density polyethylene) and PETE #1 (polyethylene terephthalate) plastics, newspaper and mixed paper, in addition to standard curbside solid waste collection services; and
- (3) Agreement to operate in such a way as to minimize risks to public health and the environment as set forth in state law and regulation pertaining to solid waste and public health.

(Ord. No. 483, § 1, 5-9-07)

Sec. 8-154. License revocation.

Any licensee found to be in violation of this article may be subject to temporary or permanent revocation of the city license and shall, upon conviction, be guilty of a violation.

(Ord. No. 483, § 1, 5-9-07)